



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUN 30 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9840
(FIRST REVISION)

EXPIRATION DATE: January 31, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Kenai Air Alaska, Inc.
Kenai, Alaska
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of hydrogen peroxide solution in a UN1A1 drum by cargo-aircraft only (a helicopter) between Nikishi, Alaska and Phillips Tyonek Platform, Tyonek, Alaska. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.101 column (9b), 175.30.
5. BASIS: This exemption is based on the application of Kenai Air Alaska, Inc. dated December 6, 1996, submitted in accordance with 49 CFR 107.109 and additional information dated February 10, 1997.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hydrogen peroxide aqueous solution with not less than 20 percent but not more than 40 percent hydrogen peroxide (stabilized as necessary)	5.1	UN2014	II

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a UN1A1 drum. Each drum must have a vented closure to prevent accumulation of internal pressure and the head with the closure must be marked "Keep This End Up". The package must be completely encompassed by a cargo net and suspended from the cargo hooks of a helicopter. Each package must be visually inspected to assure that the package is not damaged and there is no sign of contamination or decomposition of the contents prior to placing the package in the cargo net.

8. SPECIAL PROVISIONS: None as a requirement of this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo only aircraft

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.

b. A copy of the Operations Manual must be carried aboard each aircraft used in transporting the packaging authorized by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 30 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FAA